

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

June 10, 2024

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel (via Zoom), Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White (via Zoom). Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda). Upon request by Mr. Laybourn, and pursuant to support received by Dr. Aldrich and Mr. Johnson, item #16 was removed from the Consent Agenda. Upon request by Dr. Aldrich, and pursuant to support received by Mr. Cook and Mr. Segrave, item #20(f) was removed from the Consent Agenda. Mr. Segrave moved to approve remaining items, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on May 28, 2024. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for proposed budgets for the City of Cheyenne and Board of Public Utilities for Fiscal Year 2025. There being no comments or input and purpose of the hearing having been met, Mayor Collins closed the public hearing.

Mayor Collins opened a public hearing to receive comments and input for the Jolly Rogers Urban Renewal Plan and Project as required by Wyoming Statute § 15-9-109. Public comment was made by: Kathy Schaefer and Mark Christensen, AVI, agent for the applicant. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins and Mr. Roybal. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the public hearing.

ORDINANCE –3rd READING – Approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties, and septic and commercial waste dump rates, as recommended by the Board of Public Utilities. Reporting for Finance Committee, Dr. Aldrich moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich and Mr. Cook voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich, Dr. Rinne and Mr. Segrave. (#4573)

ORDINANCE – 3rd READING – Amending Chapter 5.78, Towing and Wrecker Recovery Operations, of Title 5, Business Licenses and Regulations, of the Municipal Code of the City of Cheyenne, Wyoming, modifying provisions governing towing and wrecker recovery operation licensure and the Police Department’s towing and wrecker recovery operation rotation list. Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Mr. Roybal moved to amend by substitute dated June 3, 2024, seconded by Mr. Johnson. Motion to amend by substitute carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook voting “no”. Public comment was made by: Nick Winkler, Winkler Brothers Towing & Recovery. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Cook. (#4574)

ORDINANCE – 3rd READING – Appropriating moneys for the City of Cheyenne, Wyoming for the various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2024 and ending June 30, 2025. Reporting for Committee of the Whole, Dr. Aldrich moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. The following is a summary of the proposed budget: General Fund, \$71,647,647; Weed and Pest, \$737,334; Youth Alternatives Grants, \$892,254; Recreation Programs, \$2,450,333, Community Development Block Grant, \$512,510; Law Enforcement Grants, \$239,931; Miscellaneous Federal Grants, \$1,090,364; Transportation Planning, \$1,105,707; Transit, \$5,905,504; Juvenile Justice, \$168,887; Youth Alternatives Mentoring, \$73,023; Development Impact Fees, \$1,285,300; One Percent Sales Tax, \$13,190,302; Specific Purpose Option Tax, \$684,776; Youth Activities, \$19,261; Golf Facilities, \$528,500; Fleet Maintenance, \$6,802,990; Surface Water Mitigation, \$6,088,277; Solid Waste Management, \$20,800,719; Civic Center, \$2,251,464; Ice & Events Center, \$972,375; Perpetual Care, \$45,000; Total City, \$147,637,616; Water Enterprise, \$37,025,450; Sewer Enterprise, \$22,653,420; Total Appropriation, \$207,316,486. (#4575)

ORDINANCE – 2nd READING – Defining the Terms and Conditions of employment for sworn officers of the Cheyenne Police Department for Fiscal Year 2024-2025, repealing and replacing Ordinance Nos. 4520 and 4539. Dr. Aldrich moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Amending Sections 1.4.3 Defined Terms and 2.2.6 Temporary Use Approval of the Unified Development Code, adding a minimum of fourteen days. Mr. Roybal moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Amending Section 1.4.4.c Service Uses, Table 5-1 Zoning District Uses, Section 5.7.4 Child Care Uses, and Table 6-2 Required Parking of the Unified Development Code, changing Child Care Requirements. Mr. Laybourn declared a conflict of interest and vacated council chambers. Mr. Roybal moved to approve on second reading,

seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present in council chambers.

ORDINANCE –2nd READING – Creating Section 10.24.190, Critical Traffic Control Areas; Creation and Administration; Enhanced Penalties, of the Municipal Code of the City of Cheyenne, Wyoming, authorizing the designation of Critical Traffic Control Areas and authorizing enhanced penalties as specified. Mr. Roybal moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Connie Cruz, Sheryl Steel and Kathy Schaefer. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Cook, Mr. Johnson, Mr. Laybourn and Mr. Segrave.

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MUB Mixed-Use Business to CB Community Business for land located northeast of the intersection of Cheyenne Street and Ridge Road – referred to Public Services Committee. (SPONSOR – MR. ROYBAL)

[CA] RESOLUTION – Authorizing the City of Cheyenne Board of Public Utilities to discharge uncollectible debts pursuant to Wyoming Statute 16-4-502. Motion (per Consent Agenda) carried. (#6411)

RESOLUTION – Supporting the adoption of a Vision Zero Policy to eliminate fatalities and serious injuries that are a result of crashes on city streets within the City of Cheyenne by 2040. Mr. Roybal moved to adopt, seconded by Mr. Segrave. Comments were made by the following members of the governing body: Mr. Cook, Mr. Laybourn and Dr. Rinne. (#6412)

[CA] RESOLUTION – Approving the Jolly Rogers Urban Renewal Plan and the Jolly Rogers Urban Renewal Project pursuant to Wyoming Statute Section 15-9-110 – referred to Public Services Committee. (SPONSOR – MR. ROYBAL)

[CA] RESOLUTION – Authorizing the Mayor to execute all necessary documents related to the transfer of a specified portion of the property located at 2014 Dell Range Boulevard – referred to Public Services Committee. (SPONSOR – MR. ROYBAL)

[CA] RESOLUTION – Expressing the appreciation of the Governing Body for the work of Director Nemecek, Director Sanchez, and their respective departments, on correcting deficiencies and improving and maintaining certain exterior components of the Municipal Building – referred to Public Services Committee. (SPONSOR – MR. SEGRAVE)

[CA] Grant Agreement between the City of Cheyenne, Transit Division, and the U.S. Department of Transportation for a Federal Transit Administration (FTA) Section 5307 Transit Capital Grant for the replacement of transit vehicles over the next three-year period (FTA Section 5307 Grant). Motion (per Consent Agenda) carried (in an amount of \$1,528,788.00 with a match of \$269,787.00). (#7984)

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO) and Quandel Consultants, Inc., for the Passenger Rail Station Site

Selection Study (MPO Funds, County Funds and 2021 Specific Purpose Option Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$197,944.90). (#7985)

[CA] Professional Services Agreement between the City of Cheyenne and The Design Studio, Inc. (TDSi), for the Johnson Pool Evaluation and Design Project (2021 Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$247,533.00). (#7986)

[CA] Professional Services Agreement between the City of Cheyenne and Just Be You, Inc. d/b/a Star Playgrounds, for the Saddle Ridge Playground Design and Installation Project (Development Impact Fees). Motion (per Consent Agenda) carried (in an amount not to exceed \$300,000.00). (#7987)

Purchase and Sale Agreement between the City of Cheyenne and Section 20 LLC for land located at the northeast corner of Powderhouse Road and East Carlson Street (Public Safety Infrastructure Fees). Dr. Aldrich moved to approve in an amount not to exceed \$836,325.00, seconded by Mr. Johnson. Dr. Aldrich moved to amend by substitute dated May 23, 2024, seconded by Mr. Johnson. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. Public comment was made by: Mike White. Comment was made by the following member of the governing body: Mayor Collins. (#7988)

Professional Services Agreement between the City of Cheyenne and William H. Smith and Associates (WHS), for design services for the Cheyenne - Three Alleyway Project (2021 Specific Purpose Option Tax). Dr. Aldrich moved to approve in an amount not to exceed \$110,246.00, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Cook and Mr. Laybourn. (#7989)

[CA] Memorandum of Understanding between the City of Cheyenne, Cheyenne Police Department, and Laramie County School District No. 1 for the School Resource Officers Program. Motion (per Consent Agenda) carried. (#7990)

[CA] Industrial and Economic Development Services Agreement between the City of Cheyenne and the Cheyenne/Laramie County Corporation for Economic Development (LEADS) for the period of July 1, 2024 to June 30, 2025 (General Fund) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7769 between the City of Cheyenne and Terracon Consultants, Inc., for landfill leachate system maintenance services to extend the contract for 2 years (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$99,800.00). (#7769)

[CA] Contract Modification #1 to Contract #7760 between the City of Cheyenne and Miller & Sons Construction Inc. for the 2023 Miscellaneous Concrete Project for additional concrete curb, gutter, sidewalk and valley pans (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$95,250.00). (#7760)

[CA] Contract Modification #2 to Contract #7538 between the City of Cheyenne and Top-Flight Maintenance Inc. for Janitorial Services for the City of Cheyenne Municipal Building (General Fund) – referred to Finance Committee.

[CA] Contract Modification #2 to Contract #7539 between the City of Cheyenne and Top-Flight Maintenance Inc. for Janitorial Services for the City of Cheyenne Municipal Court (General Fund) – referred to Finance Committee.

[CA] Contract Modification #3 to Contract #7540 between the City of Cheyenne and Top-Flight Maintenance Inc. for Janitorial Services for the City of Cheyenne, Cheyenne Public Safety Center (General Fund) – referred to Finance Committee.

[CA] Contract Modification #2 to Contract #7541 between the City of Cheyenne and Top-Flight Maintenance Inc. for Janitorial Services for the City of Cheyenne, Youth Alternatives & Special Friends Buildings (General Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-17-24 for the Cheyenne Junior League Bleachers Replacement (equipment only) Project (General Fund). Motion (per Consent Agenda) carried (accepted bid from Park & Play USA in an amount not to exceed \$102,788.82).

[CA] Consideration of Bid #S-14-24 for an Agreement between the City of Cheyenne and S & S Builders, LLC, for the 2024 Dell Range Concrete Repair for Overlay Project (2023-2026 Optional 1% Sales Tax Fund and 2021 Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$3,157,624.01). (#7991)

[CA] Consideration of Bid #S-16-24 for an Agreement between the City of Cheyenne and Asphalt Preservation, LLC, for the 2024 Crack Seal #1 Project (2023-2026 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$499,029.80). (#7992)

[CA] Consideration of Bid E-19-24 for one (1) new sliding axle transportation trailer for the City of Cheyenne Street & Alley Division (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (accepted bid from Peterbilt of Wyoming in an amount not to exceed \$131,345.00).

[CA] Consideration of Bid #E-20-24 for one (1) new 2024-2025, 19,500 GVWR, cab & chassis with 45 foot aerial device body for the City of Cheyenne Traffic Division (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (accepted bid from Ken Garf Cheyenne in an amount not to exceed \$221,806.15).

[CA] Consideration of Bid #S-18-24 for an Agreement between the City of Cheyenne and Better Line Roofing for the Cheyenne Fire Station 1 Roof Replacement Project (General Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-26-24 for an Agreement between the City of Cheyenne and STC Construction Co., Inc for the VA Cemetery Road Project (General Fund Reserves) – referred to Finance Committee.

[CA] Request to extend the time period in which Cheyenne Regional Airport Board d/b/a Cloud Nine Restaurant & Bar has to become operational for an additional year for their retail license, located at 300 East 8th Avenue, Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

No comments were made on the Voucher Report as presented.

Public comment was made by the following under other business: Rod Stone.

The following members of the governing body made comments under other business: Dr. Aldrich, Mr. Johnson, Mr. Laybourn and Mr. Segrave.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:30 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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